

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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ANDRE ARNOLD,

Plaintiff,

-against-

COMPLAINT

JURY DEMAND

THE CITY OF NEW YORK,
DETECTIVE EDWIN SUAREZ (Shield
03799), POLICE OFFICER DAMIEN
ORTIZ (Shield # 13816), POLICE OFFICER
JOHN DOE 1, POLICE OFFICER JOHN
DOE 2 and POLICE OFFICER JOHN
DOE 3,

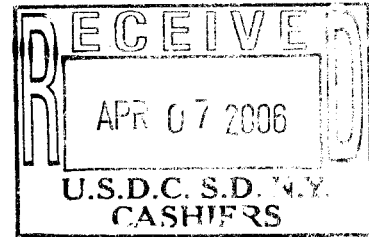
Defendants.

-----x

ANDRE ARNOLD, by his attorney(s), THE LAW OFFICES OF WALE MOSAKU,
P.C., complaining of the defendants, THE CITY OF NEW YORK, DETECTIVE
EDWIN SUAREZ (Shield # 03799), POLICE OFFICER DAMIEN ORTIZ (Shield #
13816), POLICE OFFICER JOHN DOE 1, POLICE OFFICER JOHN DOE 2, of the
New York City Police Department (collectively referred to as the Defendants), upon
information and belief alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985], [and arising under the law and statutes of the State of New York].
2. This is an action to further seek compensation for the serious and permanent personal injuries sustained by the plaintiff, as a result of the negligence of the defendants, perpetrated while said defendant officers were in the process of illegally and unlawfully arresting plaintiff.



CITY OF NEW YORK
CLERK OF THE COURT
OFFICE OF THE CLERK
100 WALL STREET
NEW YORK, N.Y. 10038
212 312 1234
APR 7 2 15 PM '06

JURISDICTION

3. The jurisdiction of this Court is invoked under 28 U.S.C. §1343(3), this being an action authorized by law to redress the deprivation of rights secured under color of state and city law, statute, ordinance, regulation, custom and usage of a right, privilege and immunity secured to the plaintiff by the Fourteenth Amendment to the Constitution of the United States. Jurisdiction of this court exists pursuant to 42 USC §1983 and under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.
4. All causes of action not relying exclusively on the aforementioned federal causes of action as a basis of this Court's jurisdiction are based on the Court's supplemental jurisdiction pursuant to 28 U.S.C. §1367 to hear State law causes of action. The events, parties, transactions, and injuries that form the basis of plaintiff's federal claims are identical to the events, parties, transactions, and injuries that form the basis of plaintiff's claims under applicable State and City laws.
5. As the deprivation of rights complained of herein occurred within the Southern District of New York, venue is proper in this district pursuant to 28 U.S.C. §§1391 (b) and (c).

THE PARTIES

6. During all times material to this complaint, plaintiff was, and he still is, a resident of the City of New York, presently residing in the Bronx County, City and State of New York. Plaintiff is a black male of full age.
7. At all relevant times, defendants DETECTIVE EDWIN SUAREZ (Shield # 03799), POLICE OFFICER DAMIEN ORTIZ (Shield # 13816), POLICE OFFICER JOHN DOE 1, POLICE OFFICER JOHN DOE 2, of the New York City Police Department (collectively referred to as defendant officer(s)), were upon information and belief,

and still are, police officers in the employ of the Police Department of the City of New York.

8. At all times herein, the defendant police officers were employed as police officers of the City of New York, State of New York, and were acting under the color of their official capacity and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant police officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and its Police Department.
9. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant Police Officers, through it's Police Department, namely New York City Police Department and the actions of the police officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
10. Plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

11. All conditions precedent to filing of this action, with the permission of this Honorable Court, will be complied with. The plaintiff intends to file an application for Leave to Serve and File a Late Notice of Claim upon the Defendant City of New York. If and when the Court grants the plaintiff's motion, a Notice of Claim sworn to by the claimant, will be served upon and filed with the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party, or in any manner designated by the Court.
12. Pursuant to §50-e(5) and (7) of The General Municipal Law, an application to serve a late notice of claim may be made after an action has been commenced on the claim.

13. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF
ACTION

14. On or about September 10, 2005, between the hours of 08:00 p.m. and 09:00 p.m., the defendant Police Officers were on duty and were acting within the scope of their authority as police officers for the defendant City of New York and in furtherance of the business of the City of New York.
15. On or about September 10, 2005, between the hours of 08:00 p.m. and 09:00 p.m., plaintiff was a lawful passenger in the vehicle of another person.
16. At the above-referenced time, the defendant police officers, in a dangerous manner, forced the vehicle in which the plaintiff was a passenger to stop, and without any provocation by the plaintiff, thereafter violently assaulted the plaintiff for no reason.
17. At the above-referenced time, the defendant police officers, without any provocation by the plaintiff, punched the plaintiff in the face several times.
18. At the above-referenced time, the defendant police officers, without any provocation by the plaintiff, hit plaintiff in the face with their radio(s).
19. At the above-referenced time, the defendant police officers, without any provocation by the plaintiff, and after having handcuffed and secured the plaintiff, pepper-sprayed (maced) the plaintiff.
20. At the above-referenced time, the defendant police officers, without any provocation by the plaintiff, dragged the plaintiff out of the front passenger's seat of the vehicle he was riding in, flung him to the floor, and administered a sustained, vicious and wicked beating to the plaintiff.

21. As a result of the vicious and wicked beating perpetrated upon him by the defendant officers, the plaintiff was caused to sustain lacerations and bruises to his face.
22. Due to plaintiff's serious injuries, the defendant officers were forced to transport the plaintiff to a hospital (Jacobi Medical Center).
23. Plaintiff was diagnosed with a nasal fracture at Jacobi Medical Center.
24. After administering the above-referenced sustained, vicious and wicked beating to the plaintiff, the defendant officers, in order to cover up their crime, maliciously and falsely charged the plaintiff with the crimes/offenses of Resisting Arrest, Attempted Assault and Harassment in the 2nd Degree.
25. In fact there was no basis for the officers to stop the vehicle the plaintiff was a passenger in, nor arrest the plaintiff in the first place.
26. At the time plaintiff was arrested, he protested to and informed defendant's agents, officers and employees that he had committed no crime or offense and offered to prove his innocence. However the defendants refused to pay any attention to plaintiff's offers, and arrested, assaulted and battered plaintiff in wanton and malicious disregard for the truth.
27. Defendant City, through its agents, servants, officers and employees, committed the arrest, assault, battery, excessive force and summary punishment without any warrant or other legal process, without informing plaintiff of the reason for his arrest, and without making any proper complaint.
28. Plaintiff was innocent of the charges and was forced by defendants, through its agents, servants, officers and employees, to submit to this arrest, imprisonment and summary punishment, and other indignities and humiliation, entirely against his will.
29. At a police precinct of the city of New York, plaintiff was fingerprinted and photographed on September 10, 2005.

30. Plaintiff was detained in custody against his will.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS: DEPRIVATION
OF CIVIL RIGHTS

31. Plaintiff repeats and realleges paragraphs 1 through 30 as if each paragraph is repeated verbatim herein.

32. The defendant police officers acted under color of law, in their official capacity and their acts were performed under color of the statutes and ordinances, customs and practices of the defendant City of New York. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

33. Acting under color of law and pursuant to official policy, practice, or custom, defendant City of New York intentionally, knowingly, negligently and recklessly failed to instruct, supervise, control, and discipline, on a continuing basis, defendant police officers in their duties to refrain from unlawfully and maliciously arresting, imprisoning, assaulting, battering, using excessive force and inflicting summary punishment on innocent members of the public. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

34. Acting under color of law and pursuant to official policy, practice, or custom, defendant City of New York intentionally, knowingly, negligently and recklessly failed to instruct, train, and supervise defendant police officers on a continuing basis in the correct procedure for making an arrest. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

35. Defendant City of New York had knowledge, or, had they diligently exercised their duties to instruct, supervise, control, and discipline on a continuing basis, should have had knowledge that the wrongs which

were done, as heretofore alleged, were about to be committed. Defendant City of New York had power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and intentionally, knowingly, negligently or recklessly failed or refused to do so. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

36. Defendant City of New York, directly or indirectly, under color of law, approved or ratified the unlawful, deliberate, malicious, reckless, and wanton conduct of defendant police officers heretofore described. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

37. The conduct of the defendants deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States:

(a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.

(b) The right of the plaintiff to be promptly informed of the nature and cause of the accusation against him, secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States.

(c) The right of plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States.

(d) The right to be free from unreasonable detention and/or continued detention without probable cause in that plaintiff was detained.

(e) The right to be free from the use of excessive force in that the plaintiff was assaulted, battered and seriously injured by the defendant officers.

38. As a result of the actions of the defendants, plaintiff was deprived of his rights, privileges, and immunities secured by the United States Constitution, in particular, the Fourth, Fifth, and Fourteenth Amendments, in contravention of 42 USC §1983 and the laws of New York State, and New York City without just or legal cause when defendant City, by its employees and/or agents unlawfully arrested and imprisoned plaintiff thereby depriving him of his liberty without due process of law.
39. The defendant police officers were the actual agents of the defendant City of New York and were following the customs, practices, ordinances and/or regulations of the City of New York when they violated plaintiff's constitutional and civil rights and the City of New York is therefore responsible for their acts and liable to the plaintiff for the damages he suffered. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
40. The actual principal/agent relationship between defendant City and the defendant police officers was created by the fact they were employees of defendant City, and the City had the right to and it did regulate and control the activities and conduct of the defendant officers. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
41. The defendants' actions were vicious, wicked, cold-hearted, intentional, malicious, unwarranted and in violation of the law. The individual defendants had full knowledge that the charges made before the Court against the plaintiff were false and untrue.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS: ASSAULT AND BATTERY

42. Plaintiff repeats and realleges paragraphs 1 through 41 as if each paragraph is repeated verbatim herein.

43. At the time of plaintiff's arrest by defendant police officers, plaintiff did not challenge nor resist defendant police officers, nor engage in any threatening behavior towards said defendant police officers.
44. However, defendant officers assaulted plaintiff, battered plaintiff, and subjected plaintiff to excessive force and summary punishment
45. Defendant police officers were at all material times acting within the scope, of their employment.
46. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
47. This action, upon information and belief, falls within one or more of the exceptions of CPLR 1602.

FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS: NEGLIGENCE

48. Plaintiff repeats and realleges paragraphs 1 through 47 as if each paragraph is repeated verbatim herein.
49. As a direct and proximate result of the negligent acts of Defendant City of New York as set forth herein, plaintiff suffered physical injury, conscious pain and suffering, medical expenses, lost wages, and severe mental anguish.
50. That by reason of the said negligence, plaintiff suffered and still suffers bodily injuries, became sick, sore, lame and disabled and has remained sick, sore, lame and disabled since the aforesaid incident; has suffered great pain, agony and mental anguish and is informed and verily believes that he will continue to suffer for a long time to come and that said injuries are permanent; has suffered economic loss inasmuch as he was forced to, and is still forced to expend sums of money on medical treatment; that he was deprived of his pursuits and interests and verily believes that in the future he will continue to be deprived of such pursuits; and that said injuries are permanent.
51. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

WHEREFORE, plaintiff respectfully prays for judgment as follows:

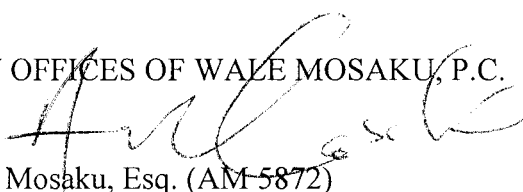
1. For compensatory damages against all defendants in an amount to be proven at trial;
2. For exemplary and punitive damages against each defendant in an amount to be proven at trial;
3. For costs of suit herein, including plaintiff's reasonable attorney's fees; and
4. For such other and further relief as the court deems proper.

DEMAND FOR TRIAL BY JURY

Pursuant to Rule 38 (b) of the Federal Rules of Civil Procedure, plaintiff demands a trial by jury.

Dated: Brooklyn, New York
April 7, 2006

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku, Esq. (AM-5872)

Attorney for the Plaintiff

25 Bond Street, 3rd Floor

Brooklyn, N.Y. 11201

(718) 243-0994

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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Plaintiff(s),

-against-

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03799), POLICE OFFICER DAMIEN
ORTIZ (Shield # 13816), POLICE OFFICER
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Defendant(s) .

COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorney(s) for Defendants
